

		appear. Failure to appear will result in court dismissal of entire action. Plaintiff SHALL file and serve a status report <u>no later than 10 court days before</u> the hearing. Plaintiff to give notice of all of the above.
11	Mojica vs. General Motors, LLC	<u>Motion to Dismiss for Discovery Violations</u> The court GRANTS Defendant General Motors LLC's unopposed motion to dismiss action without prejudice and for imposition of costs. Defendant General Motors, the only named defendant, moves to dismiss this action without prejudice and for costs, pursuant to Section 871.26(j)(3) of the Code of Civil Procedure. Plaintiffs JORGE L MOJICA and M&J DESIGN INC. filed this lemon law action on 6/27/25 asserting causes of action for violation of Civ. Code § 1793.2(d), violation of Civ. Code § 1793.2(b), violation of Civ. Code § 1793.2(a)(3), breach of implied warranty of merchantability, and fraudulent inducement, based on the sale of a 2022 Chevrolet Silverado 1500 with alleged defects. Defendant argues that under Section 871.26(c) there is an expedited discovery process requiring Plaintiff to submit to deposition upon Defendant's election within 120 days of the filing of Defendant's responsive pleading. While Defendant does not provide evidence of its election under Section 871.29 in this motion, Defendant previously filed a motion to compel Plaintiffs' compliance pursuant to Section 871.26(c)(1), and for the statutory sanctions in the amount of \$1,500 against counsel pursuant to Section 871.26(j)(1), on the basis of its election under this chapter. On 4/27/26, Judge De La Cruz in Dept. CM02 granted Defendant's motion for compliance and imposed the \$1,500 of mandatory sanctions under Section 871.26(j)(1). Plaintiffs did not oppose the motion to compel compliance and did not contest that this chapter applies.